

Council Meeting
July 24, 2019
Page 1

The Claremont City Council held a meeting on Wednesday, July 24, 2019, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:33 p.m.

Members of the Council present were:

At-Large Councilor Claire Lessard
Ward I Councilor Andrew O’Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Allen Damren
Mayor Charlene Lovett
At-Large Councilor Kristin Kenniston
At-Large Councilor Abigail Kier
At-Large Councilor Nicholas Koloski
Ward II Councilor Scott Pope

Also present:

John MacLean, Interim City Manager
Mary Walter, Finance Director

Council met with legal counsel in a non-meeting before the start of this meeting.

AGENDA CHANGES

There was a discussion to move up the Non-Public Session for Hiring to the middle of the agenda. It was the consensus of the Council to leave it at the end of the meeting.

MAYOR’S NOTES

Proclamation – David Condon Retirement

Mayor Lovett presented a proclamation to David Condon on his retirement after serving almost 32 years in the Public Works Department.

Mr. Condon thanked the Council for the award and said he would be going to work for the Parks Department.

Mayor Lovett said the Claremont MakerSpace Birthday Event and 1 Year Anniversary Party would be on July 31, 6 p.m.-8 p.m., open to public.

Mayor Lovett said the American Legion Post is celebrating 100 years with an event in Broad Street Park on Sunday, 11 a.m.-4 p.m.

Council Meeting

July 24, 2019

Page 2

Mayor Lovett said regarding too many Councilors at the Policy Committee meeting which normally meets the 1st and 3rd Thursday of the month, that there are three Councilors on the Committee. On Thursday, Ms. Kenniston and Mr. O’Hearne attended the meeting. This is considered to be a chance encounter.

Shawn Tanguay, City Attorney, said the two Councilors attended the meeting as members of the public. Where there is a chance meeting of the Council, it is not considered a public meeting of the Council. To be a meeting of the Council, it would have had to have decisions made of the Council. This Committee is advisory to the Council. It wasn’t considered a public meeting of the Council.

Mr. MacLean asked Mr. Tanguay how Councilors should handle situations like this going forward. Mr. Tanguay said the appearance of an illegal meeting is a concern. It is not advisable, but it is not illegal. He suggested avoiding these situations in the future. You don’t want this to become a pattern of the majority of the Council coming together outside of a Council meeting. If Councilors plan to be in attendance of a meeting, it is acceptable to notice that a majority of Councilors will be there and that there is no expectation of Council business being taken up. Five Councilors at a social event is not a violation of law.

Mr. MacLean asked if Councilors should be cautious about expressing their opinions and indicating how they might vote in a future meeting as a result of attending a meeting where there is a majority of Councilors present. Mr. Tanguay said absolutely. If someone goes to a Policy Committee meeting and states which way they will vote, that could be considered getting into the area of conducting City business. Councilors have the ability, as citizens, to attend public meetings, but you don’t want it to become a pattern. There was no illegality or improper behavior by Councilors at the Policy Committee meeting.

CITY MANAGER’S REPORT

Mr. MacLean advised that the Assessing Services Contract will continue with Stephan Hamilton, Whitney Consulting Group, LLC. There are very few candidates for the Assessor position. Mr. MacLean will sign the contract to extend it through this fiscal year. It can be terminated with the hiring of an Assessor.

Mr. MacLean thanked the Council for allowing him to serve this community for the past seven months. He will give a letter with a report to the Council.

CITIZEN’S FORUM

Joe Osgood, Ward 1, said regarding Councilors at committee meetings that they have a right to be there as members of the public. He was at the Policy Committee meeting and Councilors spoke as members of the community.

Police Chief Mark Chase, Ward 1, said that Michael Puksta would be participating in the CHAD (Children at Dartmouth-Hitchcock) baseball game on Friday, August 2nd, at Fisher Cats Stadium. This is the first time anyone in this area has been selected to play.

OLD BUSINESS

Approval to Move Forward with 139 Main Street

Mr. MacLean introduced Attorney Matt Decker who has been working on the 139 Main Street/147 Main Street Project. 139 Main Street is in eminent danger of collapse. It shares a common wall with 147 Main Street. 147 Main Street residents were removed.

Matt Decker, Attorney, said this dates back to last summer. Some bricks had fallen off 139 Main Street. There is an engineer's opinion that the building is at risk of eminent collapse. September 12, 2018, the Council issued an RSA155-B Order for the City Manager to remediate the hazard. If the property owner fails to do so, the City has the authority to step in and remediate the hazard. The owner of 139 Main Street is Twin State Property Maintenance, LLC. The company is defunct at this time. The City went back to court to get authorization for the City to demolish the building. An engineer discovered there was a party wall with 147 Main. The party wall has buckled. Any action to demolish 139 Main would cause issues with 147 Main, owned by New England Family Housing (NEFH). Actions need to be coordinated with NEFH. It was determined 139 Main could not sustain a heavy snow load, which required vacation of 147 Main. There is an agreement with NEFH that they install shoring within the 147 Main structure to ensure there will be no damage. NEFH hired an engineer and agreed to install shoring. NEFH will give the City a release/permission to have a demolition contractor take down the party wall. The next step is to put the project out to bid. After the party wall is demolished, there will be a hole in the ground on the 139 Main side. NEFH will have to build a wall on the 147 Main side. According to the 155-B, the City has to fill in the cellar hole. The City will contribute up to \$6,000 toward the foundation wall of 147 Main, which will become part of the lien on 139 Main after the demolition. This agreement goes beyond what Council authorized in September, so a new motion has been prepared.

Mr. MacLean said there are funds available for the demolition, which is expected to be \$60,000-\$80,000. Council would be able to say no to the project if the bids are too high.

Ms. Kenniston talked about putting a lien on the property for the demolition costs.

Mr. Decker said if the value of the real estate is not enough, it can be spread to other properties owned by the same owner. If the properties are tax deeded before the demolition takes place, the City would not be able to place a lien on those properties.

Mr. MacLean said there is an opportunity for NEFH to submit an application relative to RSA 79-E. Mr. Decker said under 79-E, the pre-improvement assessment will be captured and the property tax liability will be calculated on the unimproved property for a certain number of years. This been discussed with NEFH. The 79-E process is a Council decision.

Mr. MacLean said that NEFH could possibly bid the demolition project. Mr. Decker said that has been discussed with NEFH.

Mr. MacLean said he is hoping this property will be repurposed to be beneficial to the community. The Council may want to consider a policy to get in front of properties like this.

Francis Gauthier, Ward 1 resident and former State Representative, asked if 147 Main is given an RSA 79-E tax relief incentive, what the estimated cost will be for taxpayers. Mr. MacLean said the estimate is \$36,000 over 9 years.

Joe Osgood, Ward 1, was concerned that Twin State Property Maintenance has already sold two of its properties. He doesn't understand why no attachment has been done.

Mr. Decker said the two properties that were sold were subject to IRS liens, which was beyond the reach of what the City could attach.

A motion was made by Mr. Damren and seconded by Ms. Kier that WHEREAS the Council by Motion on September 12, 2018 issued an Order pursuant to RSA 155-B:3 ordering the owner of 139 Main Street (Map 107, Lot 015) to correct the hazardous condition of such building or to raze or remove same, preserving the shared common wall with an adjacent building (the "Order"), and the 5th Circuit Court – District Division – Claremont issued an order on November 16, 2019 authorizing the City to enforce the Order; and

WHEREAS the Council by same Motion on September 12, 2018 authorized the City Manager or his designees to undertake all actions and execute all documents as may be required pursuant to RSA 155-B to order the owner of 139 Main Street to correct the hazardous condition of such building or to raze or remove same; and

WHEREAS an engineer retained by the City has determined that the common party wall connecting 139 Main Street to 143-147 Main Street (Map 107, Lot 014) is also subject to imminent collapse and, therefore, the correction of the hazardous condition at 139 Main Street cannot be accomplished without simultaneous removal of the common party wall presumed to be located partially on the 143-147 Main Street lot and beyond the scope of the Order;

NOW THEREFORE, the Council authorizes the City Manager or his designees to undertake all additional actions and execute all documents as may be required to accomplish the removal of the common party wall in addition to the building on 139 Main Street, including but not limited to: (1) the entry into a contract with the owner of 143-147 Main Street governing the terms of the removal of the party wall and securing a release of claims against the City arising out the removal of the common party wall, (2) the hiring of a contractor to demolish the 139 Main Street building and the common party wall, and (3) the contribution of a sum not to exceed \$6,000 to the owner of 143-147 Main Street for

the partial reconstruction of a new foundation-level wall for 143-147 Main Street in order to enable the foundation of 139 Main Street to be backfilled up to the property line.

Roll call vote:

Lessard - yes

O’Hearne - no

Stone - no

Damren - yes

Kenniston - yes

Kier - yes

Koloski - no

Pope - yes

Lovett - yes

Motion carried 6-3.

Attorneys Tanguay and Decker were excused and they left Council chambers.

City Manager Search Update

Mr. Damren said the City received in excess of 50 applications for the City Manager’s position. That number has been whittled down to 4. The City Manager Search Committee and the Council have interviewed those candidates. One candidate has withdrawn their application. The Search Committee suggested that a Non-Public Session be placed on this agenda for discussion of the action at Saturday’s meeting, not to select the candidate.

Mr. O’Hearne thanked the members of the Search Committee for the work they did.

Between now and when the new City Manager takes over, Mr. Damren said we are working with Finance Director Mary Walter and other Department Heads to cover the City Manager’s position, and potentially may contact MRI and Mr. MacLean.

Ms. Kenniston asked when the Council will get together to make a decision. Mr. Damren said several things have to be done: Employee meet & greet, community meet & greet, and background investigations need to be done. He guessed maybe three weeks. Setting time for the meet & greets would be discussed during tonight’s Non-Public Session.

NEW BUSINESS

Asset Management Plan Presentation

Public Works Director Victor St. Pierre, introduced Kristen Lamasney, Wright-Pierce, Sharon Nall, NHDES, and Jeremy Clay, Assistant Public Works Director. They showed a PowerPoint presentation about Asset Management Program (AMP). Assets are water and wastewater pipes, pump stations, treatment plants, hydrants, stormwater drainage pipes and drainage structures. Asset management is operating, maintaining, upgrading and disposing of assets. The City owns

and maintains thousands of assets with values in the millions of dollars (\$41 million stormwater; \$38 million water; \$70 million wastewater (HOR); \$60 million wastewater (VERT); for a total of \$254 million. The City uses ArcGIS and Cartegraph programs to update the City's GIS data in real-time. The City has done a Risk Analysis of its assets and assigned Risk Prioritization – Recommendations. The Risk Prioritization – Results: High Priority, complete in the next 3-5 years, \$14.7 million; Medium Priority, complete in the next 5-10 years, \$43.6 million; Low Priority, complete in the next 10-20+ years, over 50% of the City's assets, \$115 million. Capital Improvement Plan (CIP) – Summary. There is a total of \$58.3 million in CIP projects proposed over the next 10 years. Additional costs will be needed to cover repairs to the City's open drainage system (culverts/swales). Next steps are to update asset data as projects are completed; train staff to maintain the data sets; perform bi-annual audits of GIS data sets; apply AMP methodology to other City assets: pavement, sidewalks, signals, signs, Parking Garage, etc.; create a "culture" of Asset Management within Public Works and City-wide.

Ms. Nall commended Claremont Public Works for the fantastic job of embracing this. This is a role model for other communities.

Francis Gauthier, Ward 1, asked what percentage of the pipes can be relined. Mr. Clay said pipes can be relined or replaced; it is unknown how many pipes can be slip-lined.

Water Meter Update

Mr. St. Pierre said Public Works is in the process of upgrading all the City water meters. The old meters are obsolete and the equipment and software to read the collected data is also obsolete. There are approximately 3,500 water customers and so far, 3,000 meters have been changed. It takes less time to read the new meters. This is to discuss next steps in order to get the rest of the new meters installed. The City will send out letters in the water bills to the customers still needing to change out their water meters. When all meters are done, Public Works will be able to read all the meters in the City in one day, instead of a couple of weeks. He asked for Council approval to send out the letters. He said the biggest problem is contacting out-of-town landlords.

A motion was made by Ms. Kier and seconded by Mr. Damren to Motion to approve the letter that was in the Council packet dated July 30, 2019, to be included in the quarterly billing.

Voice vote: motion carried 9-0.

Mr. St. Pierre thanked Mr. MacLean for his strong efforts to help the City.

Revaluation Update

Steve Hamilton, Interim City Assessor, said it is a multi-year process to revalue all properties in the City. The first phase was data collection, which was done in 2017. KRT did 50% of the property inspections in the City. Wrapped up in 2019. VGSI did the other half starting in 2018 and wrapped up in the spring. Quality control inspections have been done. Contract with VGSI

is a multi-year contract including reinspection of the entire City. VGSI will do a percentage of the City each year. VGSI examined the property values. They used sale properties to apply to all properties. Survey of rentals and expenses has been completed. A lot of work has been done on commercial and residential properties. Letters will go out with the new values. Values to be sent in the notices do not reflect any exemptions. Revaluation is required to make sure people are paying their fair share. The Assessing office is available to help should anyone need it.

Accept \$9,000 Forest Fire – Fire Fighting Gear from Claremont Fire Fighters Association
– Public Hearing

At 8:39 p.m. Mr. Koloski recused himself as he is a member of the Fire Fighters Association. He stepped down from the Council table.

Fire Chief Bryan Burr said there are funds available from the Claremont Fire Fighters Association for safety equipment. All 26 members of the Fire Department have been outfitted with this gear at no cost to City.

A motion was made by Ms. Kier and seconded by Mr. O’Hearne to accept, with sincere appreciation, a donation of forestry fire gear, including forestry fire shirts, pants and helmets valued at \$9,000.00 from the Claremont Firefighter’s Association.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Voice vote: motion carried 8-0, with 1 abstain, Mr. Koloski.

At 8:42 p.m. Mr. Koloski returned to the Council table.

Resolution 2020-7 Accept & Expend \$795,492 from NHDOT for Airport Terminal
Bldg/Hangar – Public Hearing

WHEREAS the City is undertaking a hangar reconstruction project at the Claremont Municipal Airport (the "Airport"); and

WHEREAS the City has applied for and been notified that it has been awarded a grant from the New Hampshire Department of Transportation, Bureau of Aeronautics (Bureau) in the amount of \$795,492.00 to fund the Terminal/Hangar Demolition and Terminal Building Construction Project at the Airport, said amount includes \$39,775.00 to come from the New Hampshire Department of Transportation and \$39,775.00 from local matching funds; and

WHEREAS the City would like to now accept and expend said grant funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the NH Department of Transportation grant (Project SBG-02-11-2019 demolish the current terminal/hangar building and construct a New Terminal Building (approx. 1,920 SF) – Phase II) in the amount of \$795,492.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$795,492.00 with \$715,943.00 (90%) to come from the FAA, \$39,775.00 (5%) to come from the NH DOT and \$39,775.00 (5%) as the City's share of the project, to be taken from the Airport Reserve Account (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said this is the second/final phase to demolish and construct the new terminal building.

A motion was made by Mr. Koloski and seconded by Mr. O'Hearne to adopt Resolution 2020-7 Accept & Expend \$795,492 from NHDOT for Airport Terminal Building/Hangar.

Mr. Koloski read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Resolution 2020-8 Accept & Expend \$116,000 from NHDOT for Airport Terminal Building – Public Hearing

WHEREAS the City is undertaking a hangar reconstruction project at the Claremont Municipal Airport (the "Airport"); and

WHEREAS the City of Claremont, NH, agrees to pay the Town of Haverhill, NH, 5% of unused FAA Entitlement Funds acquired by the Dean Memorial Airport. The purpose of the fund exchange is to provide the Claremont Municipal Airport extra funding for the construction of a new airport terminal building. The acquired funds in the amount of \$116,000.00 will be transferred to the City of Claremont/Claremont Municipal Airport by NH Department of Transportation, Bureau of Aeronautics in exchange for \$5,800.00 to be paid to the Town of Haverhill by the City of Claremont, NH.; and

WHEREAS the City would like to now accept and expend said entitlement funds;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts the extra funding of FAA Entitlement Funds from the Town of Haverhill in exchange for a sum of \$5,800.00; and

BE IT FURTHER RESOLVED to raise, appropriate and expend the sum of \$5,800.00, as the City's cost, to be taken from the Airport Reserve Account (to have no impact on the tax rate); and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Burr said there are entitlement funds for projects, which come directly from FAA. The City is entitled to \$150,000 a year. Regarding the terminal building, he identified that the City would be short entitlement money. It was determined that Dean Memorial Airport, which is small and doesn't do a lot of projects, had unused funds. The City will pay them 5% (\$5,800) for \$116,000 in entitlement funds.

Chief Burr is working on a Master Plan update. For the apron project, we will get \$700,000 from the FAA, without a match, saving \$35,000. The runway project will be about \$3 million.

A motion was made by Ms. Kier and seconded by Mr. Koloski to adopt Resolution 2020-8 Accept & Expend \$116,000 from NHDOT for Airport Terminal Building.

Ms. Kier read the resolution into the record.

Mr. Koloski asked that a letter be sent from the Council to the Town of Haverhill thanking them.

Mayor Lovett opened the public hearing.

Joe Osgood, Ward 1, said when you fly commercially, there is a tax and that is where this money comes from. Claremont is considered an emergency spot for aircraft to land, so that is why the FAA gives the City money for airport repairs.

Mayor Lovett closed the public hearing.

Mr. MacLean thanked Chief Burr for the work he does at the airport. He noted that the Chief does not get a stipend for these duties as other communities do.

Mayor Lovett asked if there was any way to capture the amount of money that is being invested into the airport in the Fire Department's Monthly Report. She would like the amount that has been invested in two-year increments.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

Re-Approve Identity Theft Prevention Policy

Mary Walter, Finance Director, said this is a yearly renewal. The City is at minimal risk for identity theft.

Mr. O'Hearne asked if in the future this can be done bi-annually. Ms. Walter suggested doing a report to the Council if there is an incident. This will be placed on a future agenda.

A motion was made by Mr. Pope and seconded by Mr. O'Hearne that the Claremont City Council, move to reaffirm the City's Identify Theft Program for 2019.

Voice vote: motion carried 9-0.

Dog Park and Other Reserve Accounts Review

Ms. Walter showed a PowerPoint for Reserve Accounts Review. In 2010, The City Council gave the City permission to accept and expend donations of up to \$5,000 without holding a public hearing (the legislature has amended that amount up to \$10,000). The idea of a dog park was introduced to the Council in March 2011. At the time, Veteran's Park was to be the site for the dog park. The estimate cost was \$30,000. There is a little over \$5,000 in that account. Ms. Walter reports on these reserve accounts in her Monthly Report to the City Council. Many of these accounts have not had principal money added to them for years, but the funds stay in the Trustee of Trust Funds' hands until the project (or the intended purpose of the donation or fund) has been satisfied. It is important to note that the City Council must approve the withdrawals of almost all of these funds. She said changing the purpose of the capital reserve is the prerogative of Council. That would take a 2/3 vote of the Council to do that.

Mayor Lovett said maybe there could be a future agenda item about what to do with these accounts.

Mr. Pope asked for the last date of activity on these accounts. Ms. Walter said she can check with the Trustees of Trust Funds.

Council Meeting
July 24, 2019
Page 11

Refuse Tax Deed

List of Properties the City will Tax Deed

<u>Location</u>	<u>Map/Lot</u>	<u>PID</u>	<u>Owner</u>	<u>Land</u>	<u>Building</u>
730 HANOVER ST	16-12	33780	BROWN SCOTT W	18,900	89,400
FOISY HILL RD	86-21	35971	BURBEE SARA/JOHNATHAN	25,500	0
22 HIGH ST	120-206	4240	BURBEE SARA/JOHNATHAN	13,600	0
60 CENTRAL ST	119-246	1300	CARRIER DAVID #33369	13,500	68,000
526 ELM ST	38-3	33520	DECELLE PAUL F	21,900	27,800
150 CHESTNUT ST	133-71	16110	FRESHWAY LLC	17,100	20,000
3 ANGELA PL	58-5-70	34420	GOODHUE JAMES E	0	16,800
263 NORTH ST	83-2	8220	HAUGSRUD MARTIN L	27,600	72,400
39 CENTRAL ST	119-354	1240	IVANOV PAUL	15,300	8,100
10 FITCH RESERVOIR RD	73-15	33070	KUSTRA DONNA E C	17,300	13,700
28 SPOFFORD ST	120-214	4030	LACLAIR DALE E	14,400	32,800
37 WINTER ST	108-102	14110	MCCANN PATRICK J ESTATE	17,500	49,900
157 PLEASANT ST	131-144	22340	RIVET LOUIS G	38,600	22,800
WINTER ST	73-1	37070	SCHATZ SAMUEL	23,500	0
297 CHESTNUT ST	157-2	42140	SHERMAN WILLIAM	19,000	11,500
21 JACQUELINE AVE	166-18	42480	SOUCY LEONARD G	30,100	183,700
	159-56-				
33 UPHAM PL	12	50012	THIBAUT DATHXE B	0	31,100
19 CENTENNIAL ST	108-26	10740	TWIN STATE PROPERTY MAINTENANCE	10,600	47,700
27 ELM ST	107-246	720	TWIN STATE PROPERTY MAINTENANCE	8,700	54,400
162 MAIN ST	107-46	430	TWIN STATE PROPERTY MAINTENANCE	17,300	5,300
166 MAIN ST	107-47	440	TWIN STATE PROPERTY MAINTENANCE	13,900	2,900
170 MAIN ST	107-48	450	TWIN STATE PROPERTY MAINTENANCE	29,200	114,900
			TWIN STATE PROPERTY MAINTENANCE		
11 FIRST ST	121-63	14750	LLC	15,300	54,400
			TWIN STATE PROPERTY MAINTENANCE		
LAFAYETTE ST	107-92	9580	LLC	35,400	0
			TWIN STATE PROPERTY MAINTENANCE		
32 LAFAYETTE ST	107-72	9290	LLC	43,100	295,300
	159-56-				
14 UPHAM PL	20	50019	WRIGHT CAROLYN V	0	23,500

Council Meeting
July 24, 2019
Page 12

PAYMENT AGREEMENTS

8 UPHAM PL	159-56-17	50017	BROOKS DAVID B	0	6,300
20 DENNISON AVE	129-141-1	62061	BURNS DONNA	0	5,300
34 MADISON PL	57-21-32	32052	DAVIS SARAH C	0	13,400
12 LEA ST	143-7	23730	FINCH EDITH ESTATE	13,200	78,000
30 CHAPEL GROVE PL	128-12	39322	HOWARD SR PHILLIP L	21,600	48,600
35 UPHAM PL	159-56-13	500121	MARTIN DEBORAH ESTATE	0	18,600
5 DENNISON AVE	129-141-12	62072	RICHARDSON LEE A	0	5,000
20 FISKE PL	57-21-59	32079	SHEPPARD JOHN C	0	17,500
1 CLEARY CT	120-160	4370	ST AMAND KEVIN N	13,300	46,600
40.5 CENTRAL ST	119-257	1262	ROY JAMES R	20,700	21,900

BANKRUPTCY

12 COTTAGE ST	131-166	18940	RIZZO ANGELA	10,600	2,000
38 WEBSTER AVE	93-30	37930	RIZZO ANGELA	20,700	105,700
9 DENNISON AVE	129-141-10	62070	OSGOOD TRACY (Pending Bankruptcy)	0	17,000

SELLING

135 SLAB CITY RD	85-7	36860	SABALEWSKI JAMES R	26,300	49,200
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Ms. Melcher said there are two changes to what was received in the packet: One removed because they paid and one was added pending bankruptcy.

Ms. Kenniston asked about moving the Twin State Property Maintenance LLC properties onto the Refuse Tax Deed list in order to try to lien the properties.

Mr. MacLean said on the advice of the attorney, the City would want to refuse to take the Twin State Property Maintenance LLC properties.

Ms. Melcher said once the properties are tax deeded, eviction notices are sent if property is occupied. Right to repurchase letters are sent out. The City has to give 90 days' notice before eviction. Then will schedule an auction as soon as we can.

Mayor Lovett wants to make sure there is a reverter clause in the sales agreement for each property.

There was a discussion about adding the Twin State Property Maintenance LLC properties to the Refuse Tax Deed list in order to lien them for the costs of demolition to 139 Main Street.

Ms. Walter said if Council refuses to tax deed now, it can agree to take the properties later.

A motion was made by Mr. Damren and seconded by Ms. Kier to remove the eight Twin State Property Maintenance LLC properties from the list of properties the City would be taking for Tax Deed and to put them on the Refuse Tax Deed list, knowing these would come back to the Council in August or September.

Voice vote: motion carried 9-0.

Trisha Henning, Ward 1, said she is interested in purchasing 39 Central Street.

It was explained that the property would go up for auction with the other tax deeded properties.

Ms. Melcher said it late fall would be the earliest we can do an auction.

Francis Gauthier, Ward 1, suggested when dilapidated properties come back to the City, to clear the land and make them into tiny house communities.

A motion was made by Mr. Pope and seconded by Mr. Damren that the City Council, having reviewed the list of impending tax deed parcels as presented by the City's Tax Collector, hereby notifies the Tax Collector that she shall not execute a deed of the real estate to the City for the following parcels because the Council has determined in its judgment that acceptance would subject the City to undesirable obligations or liability risks, including the potential liability as an owner of property under state and federal law, which imposes strict liability on owners for environmental impairment of the real estate involved:

159-56-17	8 Upham Pl*
129-141-1	20 Dennison Ave*
57-21-32	34 Madison Pl*
143-7	12 Lea St*
128-12	30 Chapel Grove Pl*
159-56-13	35 Upham Pl*
57-21-59	20 Fiske Pl*
120-160	1 Cleary Ct*
119-257	40.5 Central St*
131-166	12 Cottage St**
93-30	38 Webster Ave**
129-141-12	5 Dennison Ave*
129-141-10	9 Dennison Ave Pending**
108-26	19 Centennial St
107-246	27 Elm St

107-46	162 Main St
107-47	166 Main St
107-48	170 Main St
121-63	11 First St
107-92	Lafayette St
107-72	32 Lafayette St

*** Has a payment plan**

**** Bankruptcy**

The City Council further authorizes the Tax Collector or other City official to enforce all such tax liens upon the above-listed properties, as provided by RSA 80:50 and through any other remedy provided by law.

Voice vote: motion carried 9-0.

Ordinance 568 Amending the Non-Union Employee Pay Schedule – First Reading

The purpose of this proposed change is to amend Attachment C to the Non-Union Employee Classification Plan by amending and readopting the salary schedule for non-union City employees.

Enactment of this Ordinance will amend Attachment C of the Non-Union Employee Classification Plan. This change was requested by the City Administration and recommended by the Personnel Advisory Board.

Mr. MacLean said the heart of this is fairness. When adjustments are not made, there are issues trying to attract and retain qualified employees. This does not fix the Merit Plan. After this, the second step is to evaluate the Merit Plan, have an outside expert look at it.

Ms. Walter gave information regarding the Merit Plan. There are 54 full-time Merit employee positions; 38 are budgeted for and filled; 7 Merit Plan employees are at the top of their salary range; 2 are Directors, but the others are not.

A motion was made by Ms. Kier and seconded by Mr. Damren to adopt Ordinance 568 Amending the Non-Union Employee Pay Schedule on first reading.

Ms. Kier read the ordinance into the record.

Mr. Stone asked to clarify that this is not an automatic 2% pay increase.

Ms. Walter said this is increasing the payscale.

Mr. O'Hearne asked whether the Personnel Advisory Board (PAB) minutes that were included in the packet were draft or final. Ms. Walter said the PAB has not met again to approve them.

Mr. O'Hearne asked why the City Manager called the meeting to order.

Mr. MacLean said the PAB advises the City Manager and the City Manager requested the meeting be called to order.

Mr. O'Hearne felt there was a conflict because the minutes were written by Finance Director Mary Walter and the meeting was called to order by the City Manager. He said there was no member of the PAB present at the Council meeting.

Mr. Pope said he was in favor of this. This is not just about directors. He's seen good people leave. All the requirements for this ordinance have been met.

Mr. Stone asked who is the Chair of the PAB. Mr. MacLean said he believes it is Candace Crawford.

Mr. Damren said he was okay with the explanation given by Mr. MacLean and Ms. Walter. He agreed with Mr. Pope that he has seen good people leave.

Mr. MacLean clarified that he is not sure that the PAB advises the City Manager, but it may be the Council.

Mayor Lovett said the PAB meets as needed.

A motion was made by Mr. Pope and seconded by Ms. Kier to move the question.

Roll call vote:

Lessard - yes

O'Hearne - no

Stone - no

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 7-2.

Voice vote on the motion: motion carried 7-2 with Messrs. O'Hearne and Stone voting no.

Mr. O'Hearne asked why, on a voice vote, the negatives are called out. Because of the late hour, Mayor Lovett said that if Council wished to have discussion about these nuances, they can be placed on Future Agenda Items.

Charter Amendment Discussion

Mayor Lovett said Mr. Koloski had a concern and asked what that was. Mr. Koloski said he was trying to find in minutes how the discussion on a Charter Amendment regarding the Police Commission came about and where the Council discussed sending this to the Policy Committee.

Ms. Kier said that the Council can refer things to the Policy Committee and the Policy Committee is able to work on directives that are not given by the Council.

Mr. Pope said when he was on the Policy Committee, this came up as a result of several questions about the membership of the Police Commission, and their political affiliations.

Mr. Koloski said he made the motion to create the Policy Committee, but doesn't remember it being an at-will committee that will discuss whatever comes before it. He doesn't think this should be an agenda item as he doesn't know where the directive came from. There is no recollection or minutes of the discussion to send that item to the Policy Committee.

Mayor Lovett said the Police Commission was established by ordinance dated 1989. It is the charge of the Policy Committee as given to it by the Council to review these outdated ordinances.

Mr. O'Hearne read from the January 27, 2016, minutes where the Council created the Policy Committee, and based on that, he said he was under the impression the Council appoints the chair of the Committee.

Mayor Lovett said the Charter Amendment Discussion and the Policy Committee Discussion will be moved to another meeting.

Mr. MacLean asked if questions regarding the Policy Committee establishment should be sent to the Mayor and whether or not additional staff support will be needed relative to the answers. Mayor Lovett feels she can answer the questions. She can pull the minutes.

FUTURE AGENDA ITEMS AND DIRECTIVES

Mayor Lovett said there needs to be a plan for covering the City Manager's position now that Mr. MacLean will be done on July 26.

Mr. MacLean said he will be gone until August 12th. After which, he could come back, if needed. Finance Director Mary Walter will be the City Manager after Mr. MacLean leaves, however, she is going on vacation at some point and Police Chief Mark Chase could step in as the City Manager designee.

Mr. Koloski said some senior citizens had asked about the status of the Elderly Exemptions. Mayor Lovett said according to Interim Assessor Stephan Hamilton, that is tied to the revaluation.

Mr. Stone asked to have a discussion about having a forensic audit of the City's finances at the first meeting in September.

Mr. Koloski would like to know what the role of the Policy Committee is. Mayor Lovett will do the historical research on that.

Ms. Kenniston would like to digitally record meetings, so the day after the meeting they can be uploaded to the website.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(b) – HIRING

A motion was made by Mr. Damren and seconded by Mr. O'Hearne to enter the Non-Public Session pursuant to RSA 91-A:3,II(b) – Hiring.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes

Lovett - yes

Motion carried 9-0.

A motion was made by Mr. O'Hearne and seconded by Ms. Kier to exit the Non-Public Session.

Roll call vote:

Lessard - yes

O'Hearne - yes

Stone - yes

Damren - yes

Kenniston - yes

Kier - yes

Koloski - yes

Pope - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Mr. Stone and seconded by Mr. Damren to seal the minutes because it is determined that divulgence of this information likely would affect adversely the reputation of any person other than a member of this board.

Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Mr. Koloski and seconded by Ms. Kier to make a conditional offer of employment to Ed Morris.

Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Kier - yes
Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

A motion was made by Ms. Kier and seconded by Mr. Damren to extend Mr. MacLean's contract as needed through the end of October 2019.

Roll call vote:
Lessard - yes
O'Hearne - yes
Stone - yes
Damren - yes
Kenniston - yes
Kier - yes

Koloski - yes
Pope - yes
Lovett - yes
Motion carried 9-0.

ADJOURNMENT

At 11:04 p.m., a motion was made by Ms. Kier and seconded by Mr. O’Hearne to adjourn.

Voice vote: motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council